

InsP. Naresh malik

IFSO

21/4/25

**IN THE COURT OF SH. ANUJ KUMAR SINGH, LD. CHIEF
METROPOLITAN MAGISTRATE, PATIALA HOUSE COURT,
NEW DELHI DISTRICT, DELHI**

BAIL APPLICATION NO. _____ OF 2025

FIR No - 538/2024, 27.11.2024

PS: Special Cell

U/S: 318/319/61(2), BNS

Date of arrest: 05.03.2025,

Date of Judicial Custody: 10.03.2025

Chargesheet filed on: 30.01.2025

IN THE MATTER OF:

SAURABH SINGH BERTWAL

... APPLICANT

VERSUS

STATE

...RESPONDENT

INDEX

Sl. No.	Particulars	Pg. No.
1.	Application seeking bail on behalf of Saurabh Singh Bertwal in the above captioned matter.	1-11
2.	Annexure A-01: Copy of the FIR No. 538/2024.	12-14
3.	Vakalatnama	15-16

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**BAIL APPLICATION ON BEHALF OF SAURABH BERTWAL IN
THE ABOVE CAPTIONED MATTER UNDER SECTION 480 OF
BNSS, 2023.**

Most respectfully sheweth:

1. That the instant application is being filed on behalf of Saurabh Bertwal (hereinafter referred to as "*Applicant*") in FIR No. 538 of 2024. A copy of the FIR No. 538 of 2024 which has been filed under Section 318/319/61(2), is annexed herewith as **Annexure A-1**.

2. That this is the first bail application moved by the applicant in the present matter before this Hon'ble Court. No prior bail applications have been filed by the applicant before the Hon'ble Court.
3. That the main chargesheet has already been filed in the present matter on 30.01.2025. The investigation is complete and as such, there is no reason to keep and continue the custody of the applicant.
4. That the main handler of the chain ie Padam alias Sunil Shah was granted bail by this Hon'ble Court vide order dated 15.04.2025. The applicant is also entitled to bail on the ground of parity.
5. As on the date of filing of present application, the applicant has spent more than 40 days in custody and there is no reason why the applicant should be kept in custody any longer. All the sections mentioned in the FIR are punishable with less than 7 years of imprisonment and these sections cannot be termed as heinous offences in which bail cannot be granted for impact on the society.
6. The applicant has strong familial ties to the jurisdiction and there is no possibility of the applicant fleeing or absconding. The applicant is committed to appearing before the court as required. There are no criminal antecedents against the applicant. It is quite unfortunate that the applicant has been embroiled in the present case despite no involvement of the applicant.
7. Further, the Applicant is a resident of H. No. 273, Gali No. 9, B Block, Uttarakhand Enclave, Burari, New Delhi-84 and has been staying there for the last several years and hence, there are no chances of him fleeing away from the process of law. Without

prejudice to the aforesaid, the Applicant is the sole breadwinner in his family.

BRIEF FACTS

8. That the present FIR has been filed by one person called Arun Kumar Jain (*hereinafter* 'Complainant') who has alleged that he has been a victim of online fraud through the medium of whatsapp and had been induced to transfer huge sums of money to multiple accounts for the purpose of stock trading.
9. The complainant alleges that he had received link to join certain whatasapp groups. Through these whatsapp groups, the complainant was made to download some online trading applications. The alleged purpose of the group was to give financial advice regarding investement by facilitating stock trading and IPOs.
10. That as per the allegation, the Complainant started investing with small amounts and later deposited a total sum of around 18 Cr in multiple accounts.
11. That it has been alleged that out of the total sum of Rs. 18 Cr, around 98 lakhs rupees was transferred in the account of Shree Ram Transport & Battery from 17.10.2024 to 22.10.2024 which is a layer 1 account. This amount was further siphoned off to other accounts.
12. A total of Rs. 32.79 lakhs were transferred into the bank account of Dayashankar Trading Pvt. Ltd. which is a layer 2 account. The

allegations is that this account is held by two individuals in the capacity of directors, namely, Anuj Sharma and Ankit.

13. The allegation against the applicant is that several bank accounts were got opened on his instructions and were used in connivance of Padam alias Sunil Shah who is the master mind of the cyber fraud. It is imperative to note that Padam alias Sunil Shah has been granted bail by this Hon'ble Court on 15.04.2025.
14. That the applicant has not been directly involved in the present matter and M/s Dayashankar Trading Pvt. Ltd. was incorporated for the legitimate business purpose. The Applicant used to conduct business in the name of this company along with his friends Anuj and Ankit and as such, used to meet several people in the course of expanding their business.
15. That there was a fiduciary relationship between the two directors and as such, the applicant used to trust him for all business-related endeavours.
16. That the applicant gave in-principle approval to enter into business with Padam alias Sunil Shah. It was in ordinary course of such business prospects that the account details of M/s Dayashankar was shared with the afore-mentioned people.
17. That the applicant has no knowledge of receiving the proceeds of alleged fraud with the Complainant and as such has not used any monies for his personal benefit.

18. It is stated that the applicant did not have any knowledge that the account details of his company will be used for committing any criminal act. The applicant was assured that the company was involved in legitimate business activity.
19. That the applicant has no other involvement in the crime and he has played the role of only a transporter/middle man who never utilised any proceeds. It is also a matter of fact that the middlemen/transporter in such cases are not aware about the commission of crime.
20. That as per the chargesheet, the role and culpability of the accused is limited to receiving monies in the account of his company. The applicant was under the genuine belief that the said monies were received as part of business.
21. That the applicant has been made a scape-goat in the present matter in order to provide an illusory effect that the investigation is complete, while the real criminals and masterminds of the scam roam about Scot-free.
22. It is stated that the applicant has so far cooperated with the police and has furnished all the information which the applicant was aware of. It is on the basis of information give by the applicant and cooperation extended to the investigating officer that the real culprit and the handler ie Padam alias Sunil Shah was arrested by the Police.
23. That all of the alleged received amount has been diverted into other bank accounts by the actual perpetrator of the crime about which the

applicant has no knowledge. The involvement of the applicant in the present matter has only been that the bank account which was opened in the name of his company has been misused.

24. That the Investigating Officer in the said FIR arrested the Applicant on 05.03.2025 from his home as mentioned above and took him in custody without any ground, cause or reason whatsoever.
25. That the Applicant upon reaching the Police Station was questioned by the police that the Applicant has any knowledge about the entire transaction wherein the Applicant replied in negative as he has no nexus whatsoever with the entire crime or the Applicant persons.
26. That the Applicant was in Police Custody from 05.03.2025 until 10.03.2025 wherein his statement under Section 180 of BNSS, 2023 has been recorded and no incriminating evidence to prove is direct involvement in the crime, has been found in the same. That the Applicant is presently in Judicial Custody.
27. That without prejudice to the aforesaid, the Applicant does not have any role to play in the entire alleged crime and no evidence whatsoever has been found against the Applicant.
28. That the crime alleged in the FIR is of cheating and it is a trite law that for the offence of cheating, the essential ingredients that has to be established is dishonest intention by the Applicant of inducing the Complainant to transfer money to the account of his company. In the given situation, the Applicant, having never met or spoken to the

Complainant in any manner; there arises no occasion for the Complainant to be induced by the Applicant.

29. Further, with the Applicant not getting any wrongful gain out of the entire transaction, there can be no allegation of cheating against the Applicant.
30. That further, simply by virtue of knowing one of the accused, common intention to commit the crime cannot be attributed on part of the Applicant.
31. In view of the aforesaid, it can be inferred that the Applicant has a very strong case on merits and is only being made a scapegoat in the said matter.
32. That the Applicant is 26 years old individual with no prior criminal history who was working as a counselling psychologist to sustain himself and hence has no means to tamper with evidence or influence witness.
33. Further, the Applicant undertakes to fully aid in the process of investigation.
34. That the arrest memo falsely states that the applicant is non-cooperative as one of the grounds of arrest. The place of arrest has been recorded as IFSO, Spl. Cell, Dwarka, where the applicant had presented himself in compliance with the notice for appearance u/sec 35(3), BNSS. Thus, the applicant has never evaded the process of

law and as such, has been nothing short of cooperative with the police.

35. That the reasons of arrest state that arrest was required in order to prevent the destruction of the cyber evidences/ devices used in this large-scale crime. It is stated that after more than 2 months of filing of chargesheet, the investigation is complete and the evidences/devices have been recovered. Accordingly, it is not possible to tamper with or destroy any material evidence.
36. That the statement of Section 180 having been already recorded and the Applicant already being in police custody for more than 40 days, there arises no reason whatsoever for the Applicant to be in custody any longer.
37. That the Applicant having no role whatsoever in the alleged crime does not have any information in his possession to be given to the police which would unearth the entire alleged crime and hence, no purpose will be served by keeping him in custody.
38. Further, it is trite law that bail is the norm and jail is only exception. In the facts and circumstances of the present matter, no reason whatsoever has come to surface to categorise the case of the Applicant as an exception.
39. That there being no evidence whatsoever against the Applicant, grave prejudice and irreparable harm will be caused to Applicant if he is kept in custody during trial of the present matter.

40. That Applicant is ready and willing to furnish a sound surety and any other condition that this Hon'ble Court may deem appropriate.
41. That Applicant shall comply with all the directions imposed by the court. Reliance is being placed upon the judgements in "**Satender Kumar Antil Vs CBI**" (Special Leave to Appeal (Crl.) 5191/2021, decided on 07.10.2021 by the Hon'ble Supreme Court of India), "**Hussain & Anr. Vs Union of India**" (Criminal Appeal No.509/2017, decided by the Hon'ble Supreme Court of India) and "**Court on its own Motion Vs State**" (Crl. Ref. No.1/2018, decided on 13.11.2018 by the Hon'ble High Court of Delhi"), **Court on its own Motion Vs C.B.I** 109 DLT (2003) 494, **Dittaram Vs State of Uttar Pradesh** SLP (CRL) no 151/2018 decided on 06.02.2018, **Sanjay Gupta Vs State** (Bail Application no.1565/2019) decided on 11.07.2019 by the Hon'ble High Court of Delhi, **Siddharth Vs State of U.P** in Criminal Appeal no. 838/2021 decided by the Supreme Court of India, **Jagdish Nautiyal Vs State** (Bail Application no.1317/2012) decided on 29.11.2012 by the Hon'ble High Court of Delhi, **Bindu Jha Vs State** (Bail Application no.2173/2021 decided on 02.12.2021 by the Hon'ble High Court of Delhi, **Ashok Sagar Vs State** (Bail Application no.401/2018) decided on 20.06.2018 by the Hon'ble High Court of Delhi.
42. Without prejudice to the aforesaid, the Applicant has a sisters, mother who is a house wife and is fully responsible for taking care of them.
43. That Applicant shall abide by all conditions of bail and shall not jump over the bail conditions as imposed by this Hon'ble Court.

44. That the Applicant is a law-abiding citizen of this country and has no criminal antecedents whatsoever.
45. That the present application is being filed bona fide and in the interest of justice.
46. That no prejudice shall be caused to anyone if the present application is allowed.

PRAYER

Therefore, in the light of above facts and circumstances of the present case, it is most humbly and respectfully prayed that this Hon'ble Court may be pleased to:

- a. Grant bail to Applicant in the above captioned matter bearing FIR No. 538 of 2024 subject to any condition as per this Hon'ble Court in the interest of justice.
- b. Grant ad-interim *ex parte* bail to Applicant in the above captioned matter bearing FIR No. 538 of 2024 subject to any condition as per this Hon'ble Court in the interest of justice.
- c. Pass any such orders as this Hon'ble Court deems fit as per the facts and circumstances of the case in the interest of justice.

DRAWN AND FILED BY:

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Phone: 8603705017

Date: 17.04.2025

Place: New Delhi

14

NCT OF DELHI COURT FEE
DLCT2737142B25MP
27-FEB-2025

IN THE COURT OF LD. CHIEF METROPOLITAN MAGISTRATE, PATIALA HOUSE COURT, NEW
DELHI

Bail Application No. /2025

IN THE MATTER OF:

SAURABH BERTWAL

...Petitioner/Applicant

VERSUS

STATE

...Respondent/Non-Applicant

FIR No. 538/2024

Sections – 318(/319/61(2) BNS

KNOW ALL to whom these presents shall come that I, Saurabh Bertwal, s/o. Betal Singh Bhartwal, R/o H. No. 273, Gali No. 9, B Block, Uttarakhand Enclave, Burari, New Delhi-84, presently at Tihar Central Jail No. 4, of the abovenamed Petitioner/ Applicant do hereby appoint

Chambers of Subhashish Kumar,

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New Delhi-110019

Phone: +91 8603705017

Email: Subhashish.adv@gmail.com

(herein after called the advocate/s) to be my/our Advocate in the above noted case authorized him :-

To act, appear and plead in the above-noted case in this Court or in any other Court in which the same may be tried or heard and also in the appellate Court including High Court subject to payment of fees separately for each Court by me/ us.

To sign, file verify and present pleadings, appeals cross objections or petitions for execution review, revision, withdrawal, compromise or other petitions or affidavits or other documents as may be deemed necessary or proper for the prosecution of the said case in all its stages.

To file and take back documents to admit and/or deny the documents of opposite party.

To withdraw or compromise the said case or submit to arbitration any differences or disputes that may arise touching or in any manner relating to the said case.

To take execution proceedings. The deposit, draw and receive money, cheques, cash and grant receipts thereof and to do all other acts and things which may be necessary to be done for the progress and in the course of the prosecution of the said case.

To appoint and instruct any other Legal Practitioner, authorizing him to exercise the power and authority hereby conferred upon the Advocate whenever he may think it to do so and to sign the Power of Attorney on our behalf. And I/We the undersigned do hereby agree to ratify and confirm all acts done by the Advocate or his substitute in the matter as my/our own acts, as if done by me/us to all intents and purposes.

And I/We undertake that I / we or my /our duly authorized agent would appear in the Court on all hearings and will inform the Advocates for appearance when the case is called.

And I /we undersigned do hereby agree not to hold the advocate or his substitute responsible for the result of the said case. The adjournment costs whenever ordered by the Court shall be of the Advocate which he shall receive and retain himself.

And I /we the undersigned do hereby agree that in the event of the whole or part of the fee agreed by me/us to be paid to the Advocate remaining unpaid he shall be entitled to withdraw from the prosecution of the said case until the same is paid up. The fee settled is only for the above case and above Court. I/We hereby agree that once

the fee is paid. I /we will not be entitled for the refund of the same in any case whatsoever. If the case lasts for more than three years, the advocate shall be entitled for additional fee equivalent to half of the agreed fee for every addition three years or part thereof.

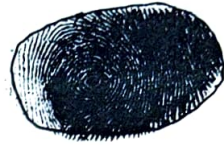
IN WITNESS WHEREOF I/We do hereunto set my /our hand to these presents the contents of which have been understood by me/us on this ___ day of April, 2025.

Accepted subject to the terms of fees.

Advocate
Subhashish
D/6808/22
UP/2000/17

LTI ATTESTED

Deputy Superintendent
Central Jail No.4, N. Delhi



LTI ✓
Subhashish
to
Betal

SR
09-4-25

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